

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

CASE OF GORODILOV AND OTHERS v. RUSSIA

(Applications nos. 75194/17 and 39 others –
see appended list)

JUDGMENT

STRASBOURG

14 May 2024

This judgment is final but it may be subject to editorial revision.



In the case of Gorodilov and Others v. Russia,

The European Court of Human Rights (Fourth Section), sitting as a Committee composed of:

Branko Lubarda*, President*,
Armen Harutyunyan,
Ana Maria Guerra Martins*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 11 April 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, and having taken into account the issue of compliance with the six-month time-limit under Article 35 § 1 of the Convention (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID-19-related extension of the period in question), the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and

5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences (CAO); *Novikova and Others v. Russia*, nos. 25501/07 and 4 others, §§ 106-225, 26 April 2016, relating to disproportionate measures taken by the authorities against participants of solo demonstrations; *Elvira Dmitriyeva v. Russia*, nos. 60921/17 and 7202/18, §§ 77-90, 30 April 2019, as to administrative conviction for making calls to participate in public assemblies; *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention; and *Korneyeva*, cited above, §§ 62-65, as to the right of the organisers or participants of public assemblies not to be tried and punished twice for the same offence.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraphs 11 and 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 14 May 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Branko Lubarda
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	75194/17 19/10/2017	**Timofey Yevgenyevich GORODILOV** 1994	Peredruk Aleksandr Dmitriyevich St Petersburg	Anti-corruption rally St Petersburg 12/06/2017 Rally against increase of prices for public transport St Petersburg 10/11/2019	article 19.3 § 1 of CAO article 20.2 § 5 of CAO article 20.2 § 2 of CAO	detention for 8 days fine of RUB 12,000 fine of RUB 20,000	St Petersburg City Court 16/06/2017 St Petersburg City Court 06/07/2017 St Petersburg City Court 06/10/2020	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of administrative-offence proceedings; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - overlap of the facts constituting the basis for the applicant's prosecution in the second set of proceedings (Art. 20.2 § 5 of CAO) with substantially the same facts underlying his conviction in the first set of proceedings, in relation to the rally on 12/06/2017 (Art. 19.3 § 1 of CAO).	5,000
2.	2420/18 23/12/2017	**Mark Daniilovich LYUBAROV** 1994	Markin Konstantin Aleksandrovich Velikiy Novgorod	Anti-corruption rally St Petersburg 12/06/2017	article 19.3 § 1 of CAO article 20.2 § 5 of CAO	fine of RUB 500 fine of RUB 10,000	St Petersburg City Court 27/06/2017 St Petersburg City Court 27/06/2017	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 3.55 p.m. on 12/06/2017 until the afternoon on 13/06/2017; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings;	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - overlap of the facts constituting the basis for the applicant's prosecution in the second set of proceedings (Art. 20.2 § 5 of CAO) with substantially the same facts underlying his conviction in the first set of proceedings (Art. 19.3 § 1 of CAO).	
3.	2828/18 17/11/2017	**Sergey Nikolayevich YEFREMOV** 1995	Peredruk Aleksandr Dmitriyevich St Petersburg	Anti-corruption rally St Petersburg 12/06/2017	article 19.3 § 1 of CAO article 20.2 § 5 of CAO	fine of RUB 1,000 fine of RUB 10,000	St Petersburg City Court 28/06/2017 St Petersburg City Court 28/06/2017	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 2.25 p.m. on 12/06/2017 until the evening on 13/06/2017; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - overlap of the facts constituting the basis for the applicant's prosecution in the second set of proceedings (Art. 20.2 § 5 CAO) with substantially the same facts underlying her conviction in the first set of proceedings (Art. 19.3 § 1 CAO).	4,000
4.	3016/18 29/12/2017	**Nikita Aleksandrovich SAMARIN** 1994	Mezak Ernest Aleksandrovich Saint-Barthélemy-d'Anjou	Anti-corruption rally St Petersburg 12/06/2017	article 19.3 § 1 of CAO article 20.2 § 5 of CAO	fine of RUB 500 fine of RUB 10,000	St Petersburg City Court 29/06/2017 St Petersburg City Court 29/06/2017	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 3 p.m. on 12/06/2017 until the evening on 13/06/2017; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - overlap of the facts constituting the basis for the applicant's prosecution in the second set of	4,000

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								proceedings (Art. 20.2 § 5 CAO) with substantially the same facts underlying his conviction in the first set of proceedings (Art. 19.3 § 1 CAO).	
5.	3149/18 27/12/2017	**Vladimir Vyacheslavovich FEDOROV** 1989	Pyshkin Valentin Valentinovich St Petersburg	Anti-corruption rally St Petersburg 12/06/2017	article 19.3 § 1 of CAO article 20.2 § 5 of CAO	fine of RUB 1,000 fine of RUB 10,000	St Petersburg City Court 29/06/2017 St Petersburg City Court 29/06/2017	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 3 p.m. on 12/06/2017 until the evening on 13/06/2017; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - overlap of the facts constituting the basis for the applicant's prosecution in the second set of proceedings (Art. 19.3 § 1 of CAO) with substantially the same facts underlying his conviction in the first set of proceedings (Art. 20.2 § 5 of CAO).	4,000
6.	3451/18 29/12/2017	**Petr Andreyevich NECHAYEV** 1975	Gromova Svetlana Viktorovna St Petersburg	Anti-corruption rally St Petersburg 12/06/2017	article 19.3 § 1 of CAO article 20.2 § 5 of CAO	fine of RUB 700 fine of RUB 10,000	St Petersburg City Court 03/07/2017 St Petersburg City Court 03/07/2017	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 2.50 p.m. on 12/06/2017 until 11 p.m. on 13/06/2017; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - overlap of the facts constituting the basis for the applicant's prosecution in the second set of proceedings (Art. 19.3 § 1 of CAO) with substantially the same facts underlying his conviction in the first set of proceedings (Art. 20.2 § 5 of CAO).	4,000

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7.	3498/18 26/12/2017	**Maksim Konstantinovich RASCHUPKIN** 1996	Markin Konstantin Aleksandrovich Velikiy Novgorod	Anti-corruption rally St Petersburg 12/06/2017	article 19.3 § 1 of CAO article 20.2 § 5 of CAO	fine of RUB 500 fine of RUB 10,000	St Petersburg City Court 03/07/2017 St Petersburg City Court 03/07/2017	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 2.30 p.m. on 12/06/2017 until 11.34 p.m. on 13/06/2017; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - overlap of the facts constituting the basis for the applicant's prosecution in the second set of proceedings (Art. 19.3 § 1 of CAO) with substantially the same facts underlying his conviction in the first set of proceedings (Art. 20.2 § 5 of CAO).	4,000
8.	4250/18 16/01/2018	**Yuriy Eduardovich SHTENGEL** 1968	Chertkov Andrey Veniaminovich St Petersburg	Anti-corruption rally St Petersburg 12/06/2017	article 19.3 § 1 of CAO article 20.2 § 5 of CAO	detention for 7 days fine of RUB 15,000	St Petersburg City Court 25/07/2017 St Petersburg City Court 19/09/2017	Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - overlap of the facts constituting the basis for the applicant's prosecution in the second set of proceedings (Art. 20.2 § 5 CAO) with substantially the same facts underlying his conviction in the first set of proceedings (Art. 19.3 § 1 CAO).	5,000
9.	4386/18 30/12/2017	**Mikhail Gennadyevich KUNTSEVICH** 1987	Peredruk Aleksandr Dmitriyevich St Petersburg	Anti-corruption rally St Petersburg 12/06/2017	article 19.3 § 1 of CAO article 20.2 § 5 of CAO	fine of RUB 500 fine of RUB 10,000	St Petersburg City Court 04/07/2017 St Petersburg City Court 04/07/2017	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 2 p.m. on 12/06/2017 until 7 p.m. on 13/06/2017; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings;	4,000

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								Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - overlap of the facts constituting the basis for the applicant's prosecution in the second set of proceedings (Art. 19.3 § 1 of CAO) with substantially the same facts underlying his conviction in the first set of proceedings (Art. 20.2 § 5 of CAO).	
10.	7480/18 22/12/2017	**Aleksandr Aleksandrovich KARMANOV** 1988	Petrov Anton Viktorovich St Petersburg	Anti-corruption rally St Petersburg 12/06/2017	article 20.2 § 5 of CAO article 19.3 § 1 of CAO	fine of RUB 10,000 detention for 6 days	St Petersburg City Court 27/07/2017 St Petersburg City Court 22/06/2017	Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - overlap of the facts constituting the basis for the applicant's prosecution in the second set of proceedings (Art. 19.3 § 1 CAO) with substantially the same facts underlying his conviction in the first set of proceedings (Art. 20.2 § 5 CAO).	5,000
11.	30560/18 14/06/2018	**Aleksandr Valeryevich BALASHOV** 1993	Antokhin Yevgeniy Vyacheslavovich Moscow	Political march Moscow 04/11/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 26/01/2018	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 04/11/2017; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
12.	30832/18 07/06/2018	**Viktor Lvovich CHERKASSKIY** 1993	Peredruk Aleksandr Dmitriyevich St Petersburg	Rally "Voters' strike" St Petersburg 28/01/2018	article 20.2 § 5 of CAO article 19.3 § 1 of CAO	fine of RUB 15,000 detention for 10 days	St Petersburg City Court 10/05/2018 St Petersburg City Court 29/03/2018	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 7.20 p.m. on 12/03/2018 until 13/03/2018, when the applicant was taken to the court; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed	5,000

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								on the applicant on 13/03/2018 was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - overlap of the facts constituting the basis for the applicant's prosecution in the second set of proceedings (Art. 19.3 § 1 of CAO) with substantially the same facts underlying his conviction in the first set of proceedings (Art. 20.2 § 5 of CAO).	
13.	47190/18 28/09/2018	**Yevgeniy Viktorovich TIKHENKO** 1979	Bayeva Aleksandra Nikolayevna Moscow	Political rally Moscow 05/11/2017 Rally "Free Navalnyy" Moscow 31/01/2021	article 19.3 § 1 of CAO article 20.2 § 8 of CAO	fine of RUB 1,000 detention for 20 days	Moscow City Court 28/03/2018 Moscow City Court 09/02/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 12 p.m. on 05/11/2017 until 2.30 p.m. on 07/11/2017 and from 3 p.m. on 31/01/2021 until 5 p.m. on 02/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
14.	47513/18 27/09/2018	**Yelena Vladimirovna NOSKOVETS** 1984	Chernyavskaya Andzhelika Viktorovna Oktyabrskiy	Rally to support A. Navalnyy and L. Volkov Novosibirsk 30/09/2017	article 20.2 § 5 of CAO	fine of RUB 5,000	Novosibirsk Regional Court 27/03/2018	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 1.05 p.m. on 22/01/2021 until 23/01/2021, when the applicant was taken to the court; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of administrative-offence proceedings;	5,000

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								Art. 10 (1) - conviction for making calls to participate in public events - rally to support A. Navalnyy on 23/01/2021 in Novosibirsk, Article 20.2 § 2 of CAO, detention for 8 days, final decision by the Novosibirsk Regional Court on 18/03/2021.	
15.	20840/19 02/04/2019	**Tatyana Sergeyevna SICHKAREVA** 1998	Mikhaylova Kseniya Andreyevna St Petersburg	Rally in support of LGBTI community St Petersburg 04/08/2018	article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 02/10/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
16.	20843/19 02/04/2019	**Aleksandr Sergeyevich AKSHENTSEV** 1986	Mikhaylova Kseniya Andreyevna St Petersburg	Rally in support of LGBTI community St Petersburg 04/08/2018	article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 16/10/2018	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 04/08/2018; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
17.	22093/19 16/04/2019	**Mariya Nikolayevna CHUPRINSKAYA** 1980	Kiselyov Roman Denisovich Moscow	Rally to support O. Sentsov Moscow 18/06/2018	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 16/10/2018	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 5.20 p.m. until 8.20 p.m. on 18/06/2018; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
18.	25176/19 23/04/2019	**Yan Aleksandrovich KSENZHEPOLSKIY** 2000	Sidorkina Svetlana Ivanovna Moscow	"Monstration" manifestation Tver 01/05/2018	Article 20.2 § 1 of CAO	fine of RUB 10,000	Tver Regional Court 30/01/2019		3,500

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19.	49639/19 04/09/2019	**Bulat Rifkatovich KHASANOV** 1998	Belozerov Aleksey Sergeyevich St Petersburg	Rally to support the accused in "Novoye Velichiye" and "Set" criminal cases St Petersburg 28/10/2018	article 20.2.2 § 1 of CAO	fine of RUB 10,000	St Petersburg City Court 09/04/2019	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 3.30 p.m. on 28/10/2018 until the afternoon on 29/10/2018; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
20.	53406/19 04/10/2019	**Yevgeniy Yevgenyevich YEKATERININ** 1981	Dubinin Nikolay Anatolyevich Moscow	Rally to support "political prisoners" Moscow 13/05/2019	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 12/08/2019	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 9.20 p.m. on 13/05/2019 until 14/05/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
21.	55228/19 07/10/2019	**Artem Igorevich UKHOV** 1989	Glukhov Aleksey Vladimirovich Novocheboksarsk	Rally for fair elections to Mosgorduma Moscow 10/08/2019	article 20.2 § 8 of CAO	detention for 10 days	Moscow City Court 15/08/2019	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 8 p.m. on 10/08/2019 until 4.50 p.m. on 12/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000

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22.	56943/19 22/10/2019	**Sergey Vladimirovich URBAN** 1986	Borisova Alena Sergeyevna Moscow	Political rally Izhevsk 24/02/2019	article 20.2 § 8 of CAO	40 hours of community work	Supreme Court of the Udmurtia Republic 22/04/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
23.	63851/19 20/11/2019	**Yakov Borisovich TSYGANKOV** 1967	Kachanov Roman Yevgenyevich Yekaterinburg	Protest against construction of the cathedral Yekaterinburg 14/05/2019	article 20.2 § 8 of CAO	detention for 10 days	Sverdlovsk Regional Court 21/05/2019	Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000
24.	64319/19 04/12/2019	**Ivan Pavlovich VOLKOV** 1978	Kachanov Roman Yevgenyevich Yekaterinburg	Protest against construction of the cathedral Yekaterinburg 04/06/2019	article 20.2 § 2 of CAO	detention for 9 days	Sverdlovsk Regional Court 07/06/2019	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 7 p.m. on 04/06/2019 until 1.45 p.m. on 05/06/2019; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
25.	9177/20 07/02/2020	**Yuriy Vladimirovich BREDELEV** 1993	Ryzhov Anton Igorevich Moscow	Rally in support of LGBTI community in Chechnya Moscow 11/10/2019	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 04/12/2019	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 4.40 p.m. until 10.50 p.m. on 11/10/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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26.	11316/20 12/02/2020	**Marina Vitalyevna SHAPOSHNIKOVA** 1963	Bontsler Mariya Vladimirovna Kaliningrad	Rally to support doctor Sushkevich Kaliningrad 06/07/2019	article 20.2 § 5 of CAO	fine of RUB 10,000	Kaliningrad Regional Court 15/08/2019		3,500
27.	38040/20 25/09/2020	**Rostislav SMOLENSKIY** 1978	Pryanishnikov Aleksey Aleksandrovich Tomsk	Rally to support S. Furgal Khabarovsk 25/07/2020 Rally to support S. Furgal Khabarovsk 29/08/2020	article 20.2 § 6.1 of CAO article 20.2 § 8 of CAO	detention for 8 days detention for 15 days	Khabarovsk Regional Court 30/07/2020 Khabarovsk Regional Court 10/09/2020	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 12.30 p.m. on 30/08/2020 until 11.30 a.m. on 31/08/2020 and on 03/09/2020; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 6.1 of CAO.	5,000
28.	43262/20 25/09/2020	**Samariddin Sadridinovich RADZHABOV** 1998	Lazareva Yekaterina Yevgenyevna Moscow	Rally to support I. Azar Moscow 05/06/2020 Rally "Free Navalnyy" Moscow 03/02/2021	article 20.2 § 8 of CAO article 20.2 § 6.1 of CAO	detention for 18 days detention for 10 days	Moscow City Court 18/06/2020 Moscow City Court 08/02/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 6 p.m. on 09/06/2020 until 1 p.m. on 10/06/2020 and from 2 a.m. until 8 a.m. on 03/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of administrative-offence proceedings; Art. 10 (1) - disproportionate measures against solo demonstrators - the applicant was fined RUB 300,000 under article 20.2 § 8 of CAO for staging a solo demonstration on 05/06/2020 in Moscow (convicted under Article 20.2 § 8 of	8,000

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								CAO for repeated breach of rules on public events, final decision by the Moscow City Court on 02/03/2021).	
29.	44743/20 04/09/2020	**Marlen Emirovich DZHEMILEV** 1963	Kogan Vanessa Moscow	Rally to support Crimean Tatars and members of Hizb ut-Tahrir Moscow 11/07/2019	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 04/12/2019	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 12.20 p.m. until 4.20 p.m. on 11/07/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
30.	48440/20 02/11/2020	**Aleksey Veniaminovich ROMANOV** 1971	Pryanishnikov Aleksey Aleksandrovich Tomsk	Rally to support S. Furgal Khabarovsk 11/07/2020	article 20.2 § 6.1 of CAO	detention for 7 days	Khabarovsk Regional Court 05/08/2020	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
31.	52879/20 13/11/2020	**Larisa Gennadyevna KUCHEROVA** 1961	Peredruk Aleksandr Dmitriyevich St Petersburg	Boris Nemtsov commemoration event St Petersburg 29/02/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 11/08/2020	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 12/03/2020; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
32.	55370/20 21/11/2020	**Svetlana Nikolayevna KOVALETS** 1973	Peredruk Aleksandr Dmitriyevich St Petersburg	Protest against amendments to the Constitution St Petersburg 15/03/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 01/09/2020	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 3.20 p.m. until 8.48 p.m. on 15/03/2020; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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33.	1864/21 07/12/2020	**Matvey Alekseyevich ALEKSANDROV** 2000	Eysmont Mariya Olegovna Moscow	Rally to support Ilya Azar Moscow 05/06/2020	article 20.2 § 8 of CAO	detention for 18 days	Moscow City Court 11/06/2020	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report on 05/06/2020 and from 5.50 p.m. on 08/06/2020 until 1.25 p.m. on 09/06/2020; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of administrative-offence proceedings; Art. 10 (1) - disproportionate measures against solo demonstrators - the applicant was fined RUB 300,000 for staging a solo demonstration by participating in a "picketing line" in the evening on 05/06/2020 in Moscow, after the rally on the same day (convicted under Article 20.2 § 8 of CAO for repeated breach of rules on public events, final decision by the Moscow City Court on 30/10/2020).	8,000
34.	12567/21 15/02/2021	**Oleg Dmitriyevich DZUTSEV** 1991	Eysmont Mariya Olegovna Moscow	Rally to support Ilya Azar Moscow 05/06/2020	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 08/09/2020	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 05/06/2020 and on 08/06/2020; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of administrative-offence proceedings; Art. 10 (1) - disproportionate measures against solo demonstrators - the applicant was fined RUB 15,000 for staging a solo demonstration by participating in a "picketing line" in the evening on 05/06/2020 in Moscow, after the rally on the same day (convicted under Article 20.2 § 5 of CAO for participation in the unauthorised public event, final decision by the Moscow City Court on 30/10/2020).	4,000

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35.	19233/21 22/03/2021	**Mikhail Vladimirovich KUMIN** 1977	Lepekhin Andrey Gennadyevich Chelyabinsk	Rally to support the governor of Khabarovsk Region S. Furgal Miass 25/07/2020 Rally "Free Navalnyy" Miass 23/01/2021	article 20.2 § 2 of CAO article 19.3 § 1 of CAO	fine of RUB 20,000 detention for 6 days	Chelyabinsk Regional Court 23/09/2020 Chelyabinsk Regional Court 29/01/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 3.10 p.m. on 23/01/2021 until 11.05 a.m. on 25/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings.	5,000
36.	24401/21 17/04/2021	**Nikita Aleksandrovich KARAYEV** 1986	Cherkasov Vitaliy Viktorovich St Petersburg	Rally to support S. Furgal Khabarovsk 02/09/202 Rally to support S. Furgal Khabarovsk 09/09/2020 Rally to support S. Furgal Khabarovsk 07/11/2020	article 20.2 § 6.1 of CAO article 20.2 § 6.1 of CAO article 20.2 § 8 of CAO	fine of RUB 10,000 fine of RUB 10,000 detention for 7 days	Khabarovsk Regional Court 10/11/2020 Khabarovsk Regional Court 01/03/2021 Khabarovsk Regional Court 18/11/2020	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 3 p.m. on 07/11/2020 until 12.20 p.m. on 09/11/2020 and from 9.45 p.m. on 12/01/2021 until 10.11 a.m. on 13/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 6.1 (which ended with final decisions taken on 10/11/2020 and 01/03/2021 respectively); Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000

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37.	26614/21 21/04/2021	**Madina Shirvanovna PETRENKO** 1973	Bubon Konstantin Vladimirovich Khabarovsk	Rally to support S. Furgal Khabarovsk 03/08/2020	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Khabarovsk Regional Court 03/12/2020	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 12 p.m. on 24/03/2021 until 25/03/2021, when the applicant was taken to the court.	5,000
				Rally to support S. Furgal Khabarovsk 09/08/2020	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Khabarovsk Regional Court 22/10/2020		
				Rally to support S. Furgal Khabarovsk 04/09/2020	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Khabarovsk Regional Court 27/10/2020		
				Rally to support S. Furgal Khabarovsk 11/09/2020	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Khabarovsk Regional Court 06/05/2021		
				Rally to support S. Furgal Khabarovsk 15/09/2020	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Khabarovsk Regional Court 25/11/2020		

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38.	28576/21 02/06/2021	**Denis Viktorovich KORZH** 1999	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 23/01/2021 Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 5 of CAO article 20.2 § 5 of CAO	fine of RUB 20,000 fine of RUB 10,000	Moscow City Court 18/03/2021 Moscow City Court 16/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station from 1.09 p.m. until 8 p.m. on 23/01/2021 and from 10.45 p.m. on 02/02/2021 until 3.45 a.m. on 03/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings.	5,000
39.	33575/21 22/06/2021	**Pavel Gennadyevich OSIPOV** 1998	Markin Konstantin Aleksandrovich Velikiy Novgorod	Rally "Free Navalnyy" Novgorod 23/01/2021	article 20.2 § 2 of CAO	fine of RUB 20,000	Novgorod Regional Court 18/02/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station from 2.39 p.m. on 23/01/2021 until 4 p.m. on 24/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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40.	36969/21 16/07/2021	**Yegor Andreyevich GROL** 1993	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Saratov 23/01/2021 Rally "Free Navalnyy" Saratov 31/01/2021	article 20.2 § 5 of CAO article 20.2 § 5 of CAO	fine of RUB 12,000 fine of RUB 12,000	Saratov Regional Court 04/06/2021 Saratov Regional Court 04/06/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 4 p.m. until 7.30 p.m. on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings.	4,000

[1] Plus any tax that may be chargeable to the applicants.